

22STCV19406 22STCV19406

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Hernandez v. Dean

Enterprises, et al.,

Case No. 22STCV19406

ORDER ON MOTION TO COMPEL FURTHER RESPONSES

Plaintiff

Adela Bautista Hernandez's Motion to Compel Defendant Dean

Enterprises to Provide Second Further Responses to Plaintiff's First Set of

Supplemental Requests for Admissions is DENIED in full. Sanctions are declined.

Background

Plaintiff Adela Bautista Hernandez ("Plaintiff")

alleges that she sustained injuries and damages in a March 11, 2022 slip and fall on the premises located at 1435 Laurel Avenue Unit 7 in Pomona ("Premises").

On June 14, 2022, Plaintiff filed a complaint, asserting a cause of action for Negligence/Premises Liability against Dean Enterprises, Iris M. Whiting, Trustee of the Iris M. Whiting 2006 Revocable Trust Dated January 13, 2006 and Does 1-50.

The Final Status Conference is set for September 8, 2026.

Trial is set for September 22, 2026.

Legal Standard

“[T]he party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

- (1) An answer to a particular request is evasive or incomplete.
- (2) An objection to a particular request is without merit or too general.”

(Code Civ. Proc., § 2033.290, subd. (a).)

The motion must include a meet and confer declaration which “state[s] facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2033.290, subd. (b)(1).) “In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.” (Code Civ. Proc., § 2033.290, subd. (b)(2).)

Notice of the motion must be provided “within 45 days of the service of the verified response, or any supplemental verified response, or any specific later date to which the requesting party and the responding party have agreed in writing . . .” (Code Civ. Proc., § 2030.300, subd. (c).) The responding party has the burden of justifying the objections to the requests. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.)

“The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2033.290, subd. (d).)

Discussion

Plaintiff moves the Court for an order compelling Dean Enterprises to provide second further responses to Plaintiff’s Supplemental Requests for Admission, Set One (i.e., Nos. 41, 42 and 58-62). Plaintiff also seeks sanctions in the amount of \$2,000.00.

Plaintiff’s counsel Andrew J. Lopez (“Lopez”)

represents, and/or the accompanying exhibits reflect, as follows:

On September 22, 2023, Plaintiff propounded Requests for Admission, Set One to Dean Enterprises. (Lopez Decl., ¶ 3, Exh. A). On December 6, 2023, December 19, 2023, February 6, 2024, and February 22, 2024, Lopez sent correspondence to Dean Enterprise's counsel regarding Dean Enterprise's failure to provide verified responses to the Requests for Admissions and requesting that verified responses be served. (Id., ¶ 4). On August 8, 2024, after having failed to receive any verified responses from Dean Enterprises, Plaintiff filed a motion to deem certain matters admitted. (Id., ¶ 5). On September 6, 2024, Dean Enterprises served verified responses; as such, the Court denied the motion as moot on September 9, 2024. (Id., ¶ 6, Exh. B). On July 10, 2025, Plaintiff propounded "Supplemental Request for Admissions, Set 1." (Id., ¶ 7, Exh. C). On August 18, 2025, Lopez sent a letter to Dean Enterprise's counsel regarding Dean Enterprise's failure to provide verified responses to the Supplemental Request for Admissions, Set 1 and requested that they be provided. (Id., ¶ 8). On September 4, 2025, after having failed to receive any verified responses from Dean Enterprises, Plaintiff filed a motion for order deeming the matters admitted or, alternatively, compelling responses to the Supplemental Request for Admissions, Set 1. (Id., ¶ 9). On October 30, 2025, Plaintiff withdrew the aforesaid motion in exchange for Dean Enterprise's new counsel's agreement to serve responses to the Supplemental Request for Admissions, Set 1, without objections. (Id., ¶ 11). On December 5, 2025, Dean Enterprise served responses, which stated that there was nothing new to supplement. (Id., ¶ 12, Exh. D). On January 8, 2026, Lopez sent Dean Enterprise's counsel Ian Carstens ("Carstens") an email, advising him that supplemental responses needed to be given for Nos. 41, 42 and 58-62. (Id., ¶ 13, Exh. E). Lopez requested that supplemental responses be provided by January 15, 2026; this was not done. (Id.) On February 12, 2026, Dean Enterprises designated its experts, including an orthopedic surgeon and a property management expert. (Id., ¶ 14, Exh. F). On February 17, 2026, Plaintiff's volume I deposition was completed. (Id., ¶ 15). Dean Enterprises later agreed to provide further responses after the parties attended a March 20, 2026 Informal Discovery Conference. (Id., ¶ 16). On April 10, 2026, Dean Enterprises served further supplemental responses. (Id., ¶ 17, Exh. G). On April 29, 2026, Lopez sent a meet and confer email to Carstens, requesting a further response. (Id., ¶ 18, Exh. H). Carstens responded that the responses were sufficient. (Id.) The instant motion followed, on May 27, 2026.

The requests in issue are Nos. 41, 42, and 58-62. Nos. 41 and 42 concern whether Dean Enterprises physically altered or modified conditions at the property, while Nos. 58-62 ask whether Plaintiff's treatment with certain providers was reasonable and necessary. Dean Enterprises provided an identical response to each of the aforesaid requests in his April 10, 2026 responses, as follows: "After a good faith and reasonable inquiry Responding Party is unable to admit or deny this request. The information known to, or readily obtainable by, Responding Party is insufficient to enable an admission or denial."

Code of Civil Procedure section 2033.220, subsection (c) provides that "[i]f a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." Dean Enterprises' response is compliant with section 2033.220, subsection (c). [FN]

The motion is denied in full. Plaintiff's request for sanctions is declined.

[FN] Plaintiff takes the position that "[t]his motion is a prerequisite for cost of proof sanctions at trial." (Motion, 6:11-12) pursuant to *Wimberly v. Derby Cycle Corp.* (1997) 56 Cal.App.4th 618. However, in addition to the fact that *Wimberly* dealt with an objection-based response as opposed to a response asserting lack of sufficient information, in *Association for Los Angeles Deputy Sheriffs v. Macias* (2021) 63 Cal.App.5th 1007, 1028-1029, a case not cited by either party, the Second District Court of Appeal determined, *inter alia*, that costs of proof were authorized as to a party's "lack of sufficient information" responses to requests for admissions, even though no motion to compel further was filed:

"[W]e disagree with the trial court's view that costs of proof are unauthorized as to responses to requests for admission that indicate a lack of sufficient information. That may be so in some cases, but it is not so here.

The trial court appears to have reasoned that, where a response is incomplete, the party requesting the

admission must make a motion to compel further responses, or else that party waives any right to compel a further response. Here, there was no motion to compel after the operative responses were filed. Defendants' response that they had insufficient information to admit or deny matters that they clearly knew or should have known is a complete (and sanctionable) response. If a party has provided 'complete responses to the requests,' then there is 'nothing to address in a motion to compel,' so 'no motion to compel further responses [is] necessary,' and the requesting party does not waive its right to cost-of-proof fees. (American Federation of State, County & Municipal Employees v. Metropolitan Water Dist. (2005) 126 Cal.App.4th 247, 269.)

An 'insufficient information' response may constitute a 'failure to admit' as specified in the statute. The statute does not use the term 'denial'; it allows a party to seek costs of proof for the other party's 'failure to admit.' (Code Civ. Proc., § 2033.420, subd. (a) ['fails to admit'] & (b)(4) ['failure to admit'].)"